REPORTABLE (107)

(1) MATHILDA MKURAZHIZHA (2) PATRICIA MUKURAZHIZHA
v
MELINA MATSHIYA N.O.

SUPREME COURT OF ZIMBABWE
HARARE: 27 AUGUST 2025 & 25 NOVEMBER 2025

Z. T. Zvobgo, for the applicants
T.W. Nyamakura, for the respondent

Chamber Application

MWAYERA JA:

1. This is an application for condonation for the late noting of an appeal and extension of time within which to note an appeal in terms of r 50(1) as read with r 50(3) of the Supreme Court Rules, 2025. The application was opposed by the respondent.

FACTUAL BACKGROUND

2. The first and second applicants are mother and daughter, respectively. The respondent is a legal practitioner practicing under the name and style of Wilmot & Bennet Legal Practitioners and acting for and on behalf of one Hilary Sue Minchin by virtue of a Special Power of Attorney. On 10 July 2003, the first applicant entered into an agreement of sale with Hilary Sue Minchin and her late husband Mr Desmond Clayton Minchin (" the Minchins"). According to the agreement, the Minchins sold to the first applicant an immovable property known as Lot 142 Pomona Estate Extension 2, Harare ("the property"). The purchase price was 28 500 GBP and the first applicant was to make monthly payments of 200 GBP to the Minchins.

3. The agreement also stated that in the event of Mr Minchin's would die, the first applicant would continue to make the monthly payments to Mrs Minchin. Further, it was agreed that the first applicant would be given occupation of the property once Hilary Sue Minchin left the country to live in Australia permanently. It was also agreed that the first applicant would live at the property rent-free, while the second applicant made instalment payments for the agreed sum. The agreement was conditional on faithful payment of the monthly instalments, failure of which would result in the agreement being cancelled as per clause 5 of the agreement. In the event of such cancellation, only 50% of the total amount paid towards the purchase price would be refunded.

4. The respondent issued summons against the first and second applicants, seeking for an order confirming cancellation of the instalment sale of land agreement entered into by and between the first applicant and the respondent. The respondent also sought the eviction of the first applicant and all those claiming occupation through her from the property. Further, the respondent sought authorization to retain the full amount paid to date, in damages for the breach.

5. The respondent alleged that the applicants stopped making payments in May 2011 and since then, the first applicant has been living on the property rent free, without making the required 200 GBP instalment payments. The respondent further alleged that sometime in 2017, the first applicant placed tenants on the property and started collecting rentals.
6. The applicants opposed the relief sought by the respondent. The applicants contended that the cancellation of the agreement was not lawfully effected. They argued that they ought to be allowed to complete the purchase. Alternatively, they sought reimbursement of the payments

they had made in the event that the cancellation was upheld. The court *a quo* held that the respondent gave proper notice hence she was entitled to cancel the agreement. The court *a quo* ordered the applicants and all those claiming occupation through them to vacate the property. In addition, the respondent was ordered to reimburse the first applicant half the amount paid under the agreement.

7. Aggrieved by the decision of the court *a quo*, the applicants noted an appeal under case number SC 662/24. However, the appeal was deemed abandoned and dismissed for failure to pay security for costs. The applicants sought condonation for the late noting of an appeal and extension of time within which to appeal, which application was granted. The applicants then noted an appeal on 7 April 2025 under case number SC 268/25, which unfortunately, was deemed abandoned and dismissed for failure to serve the notice of appeal on the Registrar of the court *a quo*.

8. This series of events has led the applicants to file the present application seeking the following relief:

RELIEF SOUGHT

1. The instant application be and hereby succeeds.(sic)
2. The applicant's failure to timeously note an appeal against the whole of the final judgment of the civil division of the High Court of Zimbabwe, sitting at Harare, per the Honourable KATIYO J, in case number HCH 344/21, which was handed down on 4 November 2024, be and is hereby condoned.

3. The applicant be and is hereby granted an extension of time within which to appeal and is hereby given leave to file its notice of appeal within five days of the date of this judgment.
4. There shall be no order as to costs.

SUBMISSIONS BEFORE THIS COURT

9. Mr *Nyamakura*, for the respondent, raised four preliminary points. The first point was to the effect that the notice of appeal is fatally defective rendering the application defective. He submitted that the notice related to an appeal against the whole judgment of the court *aquo* while the grounds reflect the appeal is against a part of the judgment. The second preliminary point relates to the fact that the applicants have not attached an explanatory affidavit from the previous legal practitioners, who they impute blame on. The third point is to the effect that the applicants do not explain all the periods of delay. Lastly, that the applicants have already been evicted, rending the matter moot.

10. Mr *Zvobgo* also raised a preliminary point to the effect that the respondent was barred on the basis that she had served the proof of service out of time. However, after an engagement with the Court, he abandoned this preliminary point. In response to the preliminary points raised on behalf of the respondent, he submitted that there was no need to for an individual ground attacking the third paragraph of the operative part of the judgment, as the grounds of appeal pleaded are valid. It was his submission that if the Court finds in favor of the grounds of appeal as pleaded, the setting aside of the judgment of the court *a quo* would be justified. Counsel, submitted that on that basis the first preliminary point must fail.

11. Regarding the second preliminary point, which pertains to the lack of an affidavit from the applicants' previous legal practitioner, one Ms *Brenda Munjere*, counsel submitted that the records under SC 662/24 and SC 268/25 spoke for themselves as the appeals were dismissed for failure to comply with the rules. He also submitted that the Court would not benefit from an explanation by Ms *Munjere*. Counsel for the applicants made the submission that Ms *Munjere* had not been candid with the court, hence her evidence would be of no use to the Court.

12. In relation to the third preliminary point that there were unexplained periods of delay, Mr *Zvobgo* made the submission that the period before 24 April 2024 was immaterial because there was a valid appeal before this Court. He also submitted that an application for condonation had been granted by consent, meaning that the respondent was well aware of the processes that led to appeal being dismissed. Counsel submitted that the explanation as provided for after 24 April 2025 is sufficient for the Court.

13. Lastly, counsel for the applicants opposed the fourth preliminary point which is to the effect that the application has become moot as the applicants have been evicted. Mr *Zvobgo* submitted that the dispute between the parties has not been extinguished for the reason that the applicants have been evicted. He submitted that there are critical questions that were not answered by the court *a quo* which need to be answered by this Court. In short, counsel submitted that the preliminary points as raised by the respondent had no merit. He submitted that they had to be dismissed.

ISSUES FOR DETERMINATION

14. 1. Whether or not the preliminary points are dispositive of the matter

2. Whether or not the requirements for an application for condonation and extension of time to note an appeal have been met.

ANALYSIS

15. Regarding the preliminary point in respect of mootness, it is clear from the papers filed of record and the submissions made before me that it appears there is a live dispute between the parties. This issue relates to the import of the notice that was given in terms of the Contractual Penalties Act [*Chapter 8:04*]. In *Munyoro & Ors* v *Minerals Identity (Pvt) Ltd & Ors* SC 03/25, on p 9, the Court made the following remarks:

> "The issue of mootness was aptly dealt with by the Constitutional Court in *Thokozani Khupe & Anor v Parliament of Zimbabwe & Ors* 2019 (3) ZLR 915 (CC) at p 7, where MALABA CJ stated as follows:
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> > "A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances, the Court's jurisdiction ceases and the case becomes moot. … It is incumbent upon the court to determine whether an application [matter] before it still presents a live dispute as between the parties…. The position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of 'such a nature that the decision sought will have no practical effect or result."
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> The above legal position was followed in *MDC & Ors v Mashavira & Ors* SC 56/20 at p 33 where it was stated:
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> > "…a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy between the parties. Thus, if the dispute becomes academic by reason of changed circumstances, the case becomes moot and the jurisdiction of the court is no longer sustainable."
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> See also *Ndewere v The President of Zimbabwe N.O & Ors* SC 57/22 at p 13:
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> > "It is clear from the above authorities that the issues that cause a matter to become moot may arise from outside the record. Thus, it matters not how the dispute between the parties is resolved."

16. Mr *Nyamakura* submitted that because the applicants had already been evicted, the matter had been rendered moot. It can be deduced from the intended notice of appeal that the applicants

seek to challenge the court *a quo's* decision to cancel the agreement of sale between the parties in respect of a notice given to the applicants in terms of s 8(2) of the Contractual Penalties Act. The applicants are also disgruntled by the fact that s 8(2) of the Contractual Penalties Act unilaterally varied the terms of the contract and introduced new obligations between the parties. These issues are not determined by the mere fact that the applicants complied with the eviction. A finding in favor of the applicants could reverse the eviction order and the property could still be determined to be belonging to the applicants. In that regard, there is still a live issue between the parties, which is not rendered moot by the eviction. This preliminary point therefore cannot be sustained.

17. Turning to the preliminary objection raised by Mr *Nyamakura* that the intended notice of appeal is defective, is dispositive of this matter. It is apparent that the application does not have a valid notice of appeal attached. On the face of it the applicants intend to appeal against the whole judgment, yet there is no ground of appeal which seeks to impugn paragraph three of the operative part of the court *a quo*'s judgment. For completeness' sake, it is important at this stage to avert to the operative part of the judgment of the court *a quo*. It reads as follows:

> "**Disposition**
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> In light of the foregoing analysis and findings, the Court makes the following order;
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> 1. Cancellation of an instalment sale of land agreement entered into by and between the plaintiff and the first defendant in respect of a certain piece of land known as Lot 142 Pomona Estate Extension 2 of Pomona, Harare also known as No. 142 Kirkcaldy Road, Pomona, Harare, be and is hereby confirmed.
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> 2. The defendants and all those claiming occupation through them to a certain piece of land known as Lot 142 Pomona Estate Extension 2 of Pomona, Harare also known as No. 142 Kirkcaldy Road, Pomona, Harare, be and are hereby ordered to vacate from the premises forthwith.

3. The plaintiff be and is hereby ordered to refund 50% of the purchase price paid as at the date of this order, in the sum of £11,297.00 (Eleven Thousand Two Hundred and Ninety-Seven Pounds).

4. No order as to costs." (Underlining for emphasis)

18. The applicants' intended grounds of appeal are couched in the following manner:

"**GROUNDS OF APPEAL**.

1. The court *a quo* erred in confirming the cancellation of the agreement of sale of 10th July 2003 between the parties, when the written notice of 9 November 2020 given by the respondent to the appellants, calling upon them to remedy their breach of contract, was invalid and non-compliant with the requirements of the provisions of s 8 (2) of the Contractual Penalties Act [*Chapter 8:04*].

2. The court *a quo* erred in finding that the respondent had complied with the provisions of s 8 (2) of the Contractual Penalties Act [*Chapter 8:04*] when its notice of 9 November 2020 unilaterally varied the terms of the written contract between the parties, and demanded the appellants to make a payment of US$160,000-00 which was not provided for anywhere in the written contract.

3. The court *a quo* erred in failing to realize that despite giving the appellants thirty (30) days' notice to make payment of the outstanding purchase price, the written notice of 9 November 2020 imposed on the appellants entirely new and alien contractual obligations outside of the four corners of the written contract between the parties, thereby falling short of the requirements of s 8 (2) of the Contractual Penalties Act [*Chapter 8:04*].

4. The court *a quo* erred in ordering the eviction of the appellants and all those claiming occupation through them from the immovable property known as Lot 142 Pomona Estate Extension 2, Harare, also known as No. 142 Kirkcaldy Road, Pomona, when the respondent's notice of 9 November 2020 for cancellation of the agreement of sale was invalid and therefore unenforceable.

5. The court a *quo* erred at law in failing to find that the summons and declaration before it were fatally defective because the respondent, who alleged to have been empowered to represent Mrs Hilary Sue Minchin by virtue of a special power of attorney executed by the latter on 12th October 2020 at Brisbane, Queensland, Australia, had wrongly instituted the summons and declaration in her name, as an agent, instead of that of Mrs Hilary Sue Minchin, the principal.

6. The court a *quo* erred at law in failing to find that the respondent, who had been cited in summons and declaration as the plaintiff, lacked any *locus standi in judicio* to be cited as a litigant in the legal proceedings before the court *a quo*.

7. The court *a quo* erred at law in failing to find that the proceedings instituted before it were a nullity because a mere special power of attorney could not confer on the respondent, who was a mere agent, any special official title warranting her citation as *nomine officii* entitling her to make use of the acronym 'N.O.'"

19. From these grounds of appeal, it is apparent that the applicants seek to challenge part of the court *a quo's* decision confirming the cancellation of the agreement of sale. Their argument is that the written notice which advised them of their breach and the need to remedy the said breach was invalid and not compliant with s 8(2) of the Contractual Penalties Act [*Chapter*

8:04]. They also want to challenge their eviction which they state was based on a cancellation on the contract which was based on an invalid notice. Lastly, the applicants want to challenge that the respondent did not have the *locus standi* to institute the proceedings as the plaintiff when she was acting under a power of attorney given by Mrs Minchin.

20. The court *a quo* in the third paragraph of the operative part of its judgment ordered the respondent to refund the applicants 50% of the purchase price paid as at the date of the order, in the sum of £11,297.00. The applicants seem not to challenge this part of the judgment as there is no ground of appeal attacking it in the intended notice of appeal. It is on that basis that the respondent makes the submission that the intended notice of appeal is fatally defective as the appellants state that the appeal is against the whole judgment. It is the respondent's argument that the applicants ought to have stated that they are appealing against **part** of the judgment. (My emphasis)

21. I associate myself with Mr *Nyamakura's* argument. It is trite that the rules are made for the proper running of the Court. See *Chikura & Anor* v *Al Sham's Global BVI Limited* 2017 (1) ZLR 181 (S). As such, the rules ought to be followed meticulously. Rule 44(1) (c) of the rules of this Court provides that **every civil appeal shall be instituted in the form of a notice of** appeal, **which shall state**, **whether the whole or part only**, **and if so which part**, **of the judgment is appealed against**. The intention of the legislature was to cater for those appeals wherein the litigant would be satisfied with one part of the judgment and not the other. In those instances, it is important to show this Court which part of the judgment they seek to impugn. (My Emphasis)

22. In this case, from the intended notice of appeal, the applicants appear as if they are not satisfied with the whole judgment, however the intended grounds of appeal do not show that the applicants are not satisfied with the third paragraph of the operative part of the judgment. Mr *Zvobgo* argues that the grounds of appeal that are pleaded are clear and they are concise, and if the Court is to find merit in them, this would lead in the judgment of the court *a quo* being set aside. However, this argument is flawed. It is trite that an appeal lies against an order of the Court and not the reasons. In *Magauzi* v *Jekera & Anor* SC 54/22, on p 6, UCHENA JA made the following remarks:

> "When a court grants an order all subsequent acts affecting the dispute between the parties rely on the court's order and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. Therefore a party or the parties cannot disregard a court order as they are bound by it. In the case of *Chiwenga* v *Chiwenga* SC 2/14, it was stated that:
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> > 'The law is clear that an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this Court and not even by consent can parties vary or depart therefrom. See also *CFU* v *Mhuriro & Ors* 2000 (2) ZLR 405 (S).'"

23. Similarly, in *Dzvetero & Anor* v *Sakunda Trading (Pvt) Ltd & Ors,* SC 161/21, on p 8, MAKONI JA remarked that:

> "That an appeal must be directed at the order made and not the reasons thereof is now well established in our jurisdiction. This Court in *Chidyausiku* v *Nyakabambo* 1987 (2) ZLR 119 (SC) at p 124 C held that:
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> > 'In order to be valid, a notice of appeal must be directed to the whole or part of the order made by the court *a quo* and not to its reasons for making the order in question. It must be lodged against the substantive order.'
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> (See also *Herbstein & Van Winsen's* Civil Practice of the Supreme Court of South Africa by *Gilliers & Loots & Dendy* 4th Ed at p 868-9.)
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> This Court in *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Proprietary) Ltd & Anor* SC 43/13 at p 12-13 interpreted the findings in *Chidyausiku supra* in the following terms:

> "It seems to me that the principle that comes out in the case of *Chidyausiku* v *Nyakabambo* is not always fully appreciated, even amongst lawyers. That case is not authority for the proposition that in an appeal one should not attack the reasons for the order. What the case says is that an appeal should be directed at the order and not simply the reasons. Quite clearly if the intention is not to have the order interfered with in any way, then no purpose would be achieved by attacking the reasons thereof. It goes without saying that in order to attack the order made, one must attack the reasoning process leading to the order. In other words in order to attack the order made, one must attack the findings made that justify the order made." (My emphasis)

In *Kingstons Ltd* v *L D Ineson (Pvt) Ltd* 2006 (1) ZLR 451 (S) at p 459 D-F the Court said:

> "It is trite that an appeal can only be noted against the substantive order made by a court and not against the reasons for making or the process by which it arrives at, the order in question."

24. In view of the above, it is apparent that an appeal lies against the order of the court *a quo.* In this case, the operative order of the court *a quo* has four paragraphs. The intended grounds of appeal only seek to impugn the first, second and fourth paras of the judgment. The applicants' intended grounds of appeal do not attack para 3 of the judgment. It is an established principle that, that which is not denied is taken to have been admitted. See *Mabika* v *Wise Owls Group of Schools* SC 31/25. Using that principle, the applicants are in agreement with para 3 of the judgment, which states that the respondent has to refund them 50% of the purchase price. Hence the appeal is against part of the judgment. With that, the applicants ought to have indicated that they are appealing against part of the judgment instead of the whole judgment. In the event that the applicants intended to impugn the whole judgment, there ought to have been a ground of appeal contending that the court *a quo* erred in coming to the conclusion that they were to be paid a refund of the purchase price.

25. In this case, even though the applicants state that they are appealing against the whole judgment, this notion is not reflected by the grounds of appeal. In my view, this renders the

notice of appeal fatally defective. Mr *Zvobgo's* argument that a finding in favor of the grounds as pleaded will justify the setting aside of the whole judgment does not salvage the situation. The purpose of an appeal is to challenge the order of the court *a quo*. If a litigant does intend to challenge the whole or part of the order, it must be indicated on the notice of appeal. To this extent therefore, the first preliminary point has merit. It must succeed. Seeing that the intended notice of appeal is fatally defective, the application cannot stand. I shall not endeavor to deal with the other points raised as this point is dispositive of the matter. See *Gospel of God International 1932* v *Mungweru & Ors*, SC 99/19. Further, it will also not be necessary to relate to the issue of whether or not requirements for the application for condonation and extension of time to note an appeal have been met because, having found that the intended notice of appeal is fatally defective there is no proper application before the court.

DISPOSITION

26. I find the intended notice of appeal to be fatally defective for the reason that the applicants indicate that they are appealing against the whole judgment, when in fact, they are appealing against part of the judgment. There is no ground of appeal which attacks the court *a quo*'s decision ordering the respondent to pay the applicants a refund of their purchase price. This irregularity renders the intended notice of appeal fatally defective. The matter stands to be struck off the roll. Costs follow the result.

27. Accordingly, it is ordered as follows:

> "The matter be and is hereby struck off the roll with costs."

Zvobgo Attorneys, applicants' legal practitioners.

Wilmot & Bennet Legal Practitioners, respondent's legal practitioners.